

**CITY OF CHEYENNE
CONTRACT MODIFICATION**

APPROVED as to form only:
By John Brodie at 3:33 pm, Sep 18, 2024

Contract Modification: #1
Project: Cheyenne Three Alleyway Project Design Services
Project Number: Contract # 7989
Contractor: William H. Smith
Date Prepared: September 18, 2024

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Changes would provide for necessary design services for the addition forth alleyway with the Cheyenne Three Alleyway Project Design Services. The amended management fees as shown in attachment are incorporated by reference and made a part hereof.

II. New Contract Items

This contract modification adds an additional alleyway to the project, referred to as the "Sanfords Alley." See attached Proposal from William H. Smith and Associates (WHS).

III. Schedule

Through the completion of the project, currently scheduled for January 1, 2025.

IV. Summary

Original Contract Amount	\$110,246.00
Previous Modifications	\$0
Contract Amount Prior to this Modification	\$110,246.00
This Modification	\$39,639.67
New Contract Amount	\$149,885.00

V. GL Account Information

GL# 030-21-2113-45-43110

VI. Approvals

DATE: _____

City of Cheyenne

Mayor Patrick J. Collins

/ATTEST: Kristina F. Jones, City Clerk

Recommend approval by City Project Manager / Accepted by Consultant

City Contract No. 7989

PROFESSIONAL SERVICES AGREEMENT
for
Cheyenne - Three Alleyway Project Design Services

THIS AGREEMENT is made and entered into by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and William H. Smith and Associates (WHS), located at 1515 9th St, Ste A, Rock Springs, Wyoming 82901 ("Consultant"). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**
The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.
2. **TIME OF PERFORMANCE**
The work included in this Scope of Work will be completed by **January 1, 2025**.
3. **CONSULTANT RESPONSIBILITY**
In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.
4. **COMPLIANCE WITH LAWS**
The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.
5. **DRUG-FREE WORKPLACE**
In compliance with the Drug Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If

the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

6. **INDEMNIFICATION/HOLD HARMLESS**

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. **INSURANCE REQUIREMENTS**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be

- in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
 - d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. **MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES** 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.

9. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of One Hundred Ten Thousand Two Hundred Forty-Six. (\$110,246) stated in Exhibit B.

10. MONTHLY REPORT

With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

11. INDEPENDENT CONSULTANT

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

12. TAXES

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.

13. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

14. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

This Agreement shall end on or before January 1, 2025. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as

may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.

- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

23. ENTIRETY OF AGREEMENT

This Agreement consisting of nine (9) pages, and the proposal, which contains of Exhibit A and Exhibit B for a total of Five (5) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

[THIS SPACE INTENTIONALLY LEFT BLANK]

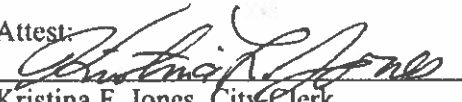
IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

City of Cheyenne

(SEAL)

By: 

Patrick J. Collins, Mayor

Attest: 

Kristina F. Jones, City Clerk

Date: 6-12-24

Consultant

By: 

Print Name: Mark R. Madsen

Date: 6/13/24

EXHIBIT A-PROJECT SCOPE

ALLEY DESIGN SCOPES

Alley 1 - 300' x 12' St. Mary's Alley from Capitol Ave. to Central Ave.

Alley 2 - 300' x 12' Alley north of 18th Street from Warren Ave. to House Ave.

Alley 3 - 300' x 12' alley north of 16th Street from Central Ave. to Capitol Ave.

WHS WORK ITEMS:

- GIS/Cheyenne maps review - accuracy and utility capacity within 1 block radius
- Utility locating by Nunn Locating
- Shallow Geotechnical Investigation by JB Engineering, up to 4' depth (bore holes and extensive sampling excluded due to access/overhead obstructions)
- Utility & Surface features surveys (2) - (up to 100' corridor)
- Kick-off meeting with the City of Cheyenne (1)
- Stakeholder/adjacent business meetings (1 each + 1 collective review conference)
- Preliminary Design Phase, Data Collection, Conceptual Design
- 50% Review Meeting with City of Cheyenne (1)
- Final Design Phase, 11x17 construction Plan set creation (up to 10 sheets), permitting with local agencies, cost estimating (1)
- Final Review Meeting with City of Cheyenne (1)
- Project bid phase, pre-bid meeting, advertising, bidding, bid review and recommendations. (1 round)

CURRENT CONDITION

After touring the St. Mary's site with Doug Klahn from the City of Cheyenne and the subsequent meeting on September 18th, 2023 with St. Mary's Father Tom Cronkleton, Neill O'donnell, Director of Operations at St. Mary's and Tom Cobb, City Engineer, we understand that the issues in this alley are largely water related. Ice continually forms on the north side of the

rectory due to slow surface drainage from the largely flat parking lot. The water pools on uneven concrete paving. This poor drainage is exacerbated by the additional water from the roof drains of the Rectory. This area remains in the shade from Fall to Spring making a large sheet of ice for patrons to try to cross to enter the building. WHS intends, with continual communication and discussions with the above stakeholders, to address the drainage by first reviewing all available information on utilities and prior construction activity. WHS will survey the alley and adjacent parking lot to define the surface drainage paths. WHS will analyze the projected water volumes from both roof drainage and surface sheet flow. WHS intends to use Nunn locating to define all utility conflicts and subsurface obstructions using their ground penetrating radar which will result in a design that may include the installation of storm sewer, inlets or slotted drains.

UTILITY, TRENCH, SUB-BASE AND BASE DESIGN

WHS will perform a geotechnical investigation to establish foundation support for the pavement and any backfill for additional conveyance (piping) for the storm sewer, inlets and catch basins.

PAVEMENT DESIGN

WHS will design the pavement per city standards either in asphalt or concrete. Special attention will be given to ensure the pavement is properly graded, delivering the best drainage of the alley way and parking lot.

ROLL-OFF SANITATION CONTAINER ENCLOSURE

WHS will utilize the existing design document supplied by Mr. O'Donnell for the 3-sided enclosure. WHS will validate the foundation design. WHS will investigate if the enclosure walls can be adequately supported on top of a designed reinforced-concrete slab. WHS will contact the masonry suppliers to acquire an appropriate matching brick, or brick fascia product.

CURRENT CONDITIONS FOR ALLEY 2 AND 3

The city inspector Doug Klahn and Mark Madsen (WHS) toured the alley that runs behind Wallick and Volk, running East to West between Warren Avenue and House Avenue and the alley to the north of the Plains Hotel, running East to West from Central Avenue to Capitol Avenue. In both cases we found alleys with considerable use by surrounding businesses with access to the businesses and multiple vehicle parking spots. Both Alleys had deteriorated pavements and inadequate drainage.

ALLEY 1: Saint Mary's Alley (Capitol Avenue to Central Avenue

[illegible]

ALLEY 2: Alley North of 18th Street (Warren Avenue to House Avenue)
ALLEY 3: Alley North of 16th Street (Central Avenue to Capitol Avenue)

Item/Scope of Work	Description Detail Based on RFP	PSA 11/1/2017	PS 9/2/15 11/1/2017	Est 11/1/2017	Survey Crew 11/1/2017	Calc 11/1/2017	Admin 11/1/2017	Total Pts 11/1/2017	Carbon 11/1/2017	Hours/pts 11/1/2017	Phase Totals 11/1/2017	Sub Totals 11/1/2017	10/1/2017
Boundary Survey	The aliquot, property, boundary and other monuments to control survey. Set up local control for each alleyway.												
Field Site/Feature Survey	Topographic elevation checks and feature survey: buildings, structures, utilities												
Utility Survey	Survey all visual evidence of any/all dry and wet ditches including any marked by locators.												
Pre-Engineering Design Phase													
Data Collection													
Kick-off Meeting	Evaluate current regulatory requirements for project												
Review Existing Data	Utility locations, conflicts												
Agency Coordination, Correspondence	Coordination between various agencies involved including State and Local government and private land owners												
GPR and Utility Locating	No-locating sub consults (GPR and Utility locates)												
Geotech	Boring on each alley												
Schematic Design (25%)													
Schem. Design	Conceptual design												
25% Review Meeting	Base map review, Agenda Preparation												
Design Development (50%)													
25-50% Design	Preliminary design												
Additional data gathering	Additional survey and owner coordination												
Black Hills Power Coordination	Negotiating underground utility												
Preliminary Cost Estimate	Engineer's preliminary cost estimate												
50% Review Meeting	Project Review, Agenda Preparation												
Incorporate Comments													
Final Design Phase													
50-90% Design	Construction Plan set												
90% Plan Review Meeting	Project Review, Agenda Preparation												
Permitting and Applications	Permitting through state and local agencies												
Incorporate Comments													
90-100% Design	Project Review, Finalize Design, Agenda Preparation												
Final Est. Cost Estimate													
Deliverables Prep													
Pre-Bid Meeting	Schedule and conduct pre-bid meeting												
Address/RFI	Prepare addenda and RFIs												
Bid Review/Recommendations	Review contractor bid documents, prepare bid tabulation and submit recommendations												
TOTAL													
Summary													
Alleyways 2 and 3													
St. Mary's Alley													
Combined Total Cost													

Additional Geotechnical Investigations, Invasive subsurface investigations (potholing), testing, or full-time inspection.

SUPPLEMENTAL CONDITIONS TO THE GENERAL CONDITIONS

A. GENERAL CONDITIONS

Standard of Care. The standard of care for all professional engineering and related services performed or furnished by Engineer under this Agreement will be the care and skill ordinarily used by members of the subject profession practicing under similar circumstances at the same time and in the same locality. The Engineer makes no warranties, express or implied, under this Agreement or otherwise, in connection with any services performed or furnished by Engineer.

Technical Accuracy. Owner shall not be responsible for discovering deficiencies in the technical accuracy of Engineer's services. Engineer shall correct deficiencies in technical accuracy without additional compensation unless such corrective action is directly attributable to deficiencies in Owner-furnished information.

Conflicts within the Agreement. If there is a conflict within this Agreement, the order of priority of the documents which make up this Agreement, from highest to lowest, will be:

- (a) Agreement.
- (c) Any supplementary conditions to the General Conditions.
- (d) General Conditions.
- (e) Exhibit A – SCOPE OF WORK.
- (f) Other schedules to this Agreement.

Any changes in the Consultant's or Subconsultant's staff or fee structure will be presented in writing to the City for approval prior to initiating any changes or performing any work.

Overhead and Normal Business Expenses. The consultant shall include customary overhead costs and statutory benefits as part including, but not limited to, social security contributions, unemployment, excise and payroll taxes, workers' compensation, health and retirement benefits, bonuses, sick leave, vacation, and holiday pay, as applicable, within the billing rates furnished in Exhibit B. Additionally, the cost of general and administrative overhead which includes salaries and wages of employees engaged in business operations not directly chargeable to projects, plus non-Project operating costs, including but not limited to, business taxes, legal, rent, utilities, office supplies, insurance, and other operating costs shall not be directly billed to project and assumed to be included within the billing rates furnished.

B. DESIGN PROCESS DOCUMENTATION

To document the design process, the consultant will be required to provide a Decision

and Design Log for the project duration. This log shall be furnished to the City of Cheyenne in conjunction with the project steering committee meetings. The purpose of the log is to document and track major decisions during the design and development process. The log shall generally follow the format outlined below in Table 1 Design and Design Log:

Table 1 Design and Design Log

No.	Date	Decision	Alternatives Considered	Reasons	Decision Made By	Additional Task Required
Sequenced log number.	Date the decision was made.	A one-sentence summary of the decision made.	A list of the other approaches considered.	A two to three sentence summary of why the decision was made. A link to additional documentation, if required and [Title].	Who made this decision?	If applicable, a list of additional tasks required by the design or follow-up required.

PROPOSAL FOR

Cheyenne-Three Alleys

April 25, 2024



Experience

YOU CAN COUNT ON



Established in 1967 as William H. Smith and Associates, now known by our clients and industry as WHS, has become an Engineering and Land Surveying company existing firmly on our accountability, professionalism and expertise standing alongside and supporting our clients and the communities where we live and work.

EXHIBIT A-PROJECT SCOPE

ALLEY DESIGN SCOPES

Alley 1 - 300' x 12' St. Mary's Alley from Capitol Ave. to Central Ave.

Alley 2 - 300' x 12' Alley north of 18th Street from Warren Ave. to House Ave.

Alley 3 - 300' x 12' alley north of 16th Street from Central Ave. to Capitol Ave.

WHS WORK ITEMS:

- GIS/Cheyenne maps review – accuracy and utility capacity within 1 block radius
- Utility locating by Nunn Locating
- Shallow Geotechnical Investigation by JB Engineering, up to 4' depth (bore holes and extensive sampling excluded due to access/overhead obstructions)
- Utility & Surface features surveys (2) – (up to 100' corridor)
- Kick-off meeting with the City of Cheyenne (1)
- Stakeholder/adjacent business meetings (1 each + 1 collective review conference)
- Preliminary Design Phase, Data Collection, Conceptual Design
- 50% Review Meeting with City of Cheyenne (1)
- Final Design Phase, 11x17 construction Plan set creation (up to 10 sheets), permitting with local agencies, cost estimating (1)
- Final Review Meeting with City of Cheyenne (1)
- Project bid phase, pre-bid meeting, advertising, bidding, bid review and recommendations. (1 round)

CURRENT CONDITION

After touring the St. Mary's site with Doug Klahn from the City of Cheyenne and the subsequent meeting on September 18th, 2023 with St. Mary's Father Tom Cronkleton, Neill O'donnell, Director of Operations at St. Mary's and Tom Cobb, City Engineer, we understand that the issues in this alley are largely water related. Ice continually forms on the north side of the

rectory due to slow surface drainage from the largely flat parking lot. The water pools on uneven concrete paving. This poor drainage is exacerbated by the additional water from the roof drains of the Rectory. This area remains in the shade from Fall to Spring making a large sheet of ice for patrons to try to cross to enter the building. WHS intends, with continual communication and discussions with the above stakeholders, to address the drainage by first reviewing all available information on utilities and prior construction activity. WHS will survey the alley and adjacent parking lot to define the surface drainage paths. WHS will analyze the projected water volumes from both roof drainage and surface sheet flow. WHS intends to use Nunn locating to define all utility conflicts and subsurface obstructions using their ground penetrating radar which will result in a design that may include the installation of storm sewer, inlets or slotted drains.

UTILITY, TRENCH, SUB-BASE AND BASE DESIGN

WHS will perform a geotechnical investigation to establish foundation support for the pavement and any backfill for additional conveyance (piping) for the storm sewer, inlets and catch basins.

PAVEMENT DESIGN

WHS will design the pavement per city standards either in asphalt or concrete. Special attention will be given to ensure the pavement is properly graded, delivering the best drainage of the alley way and parking lot.

ROLL-OFF SANITATION CONTAINER ENCLOSURE

WHS will utilize the existing design document supplied by Mr. O'Donnell for the 3-sided enclosure. WHS will validate the foundation design. WHS will investigate if the enclosure walls can be adequately supported on top of a designed reinforced-concrete slab. WHS will contact the masonry suppliers to acquire an appropriate matching brick, or brick fascia product.

CURRENT CONDITIONS FOR ALLEY 2 AND 3

The city inspector Doug Klahn and Mark Madsen (WHS) toured the alley that runs behind Wallick and Volk, running East to West between Warren Avenue and House Avenue and the alley to the north of the Plains Hotel, running East to West from Central Avenue to Capitol Avenue. In both cases we found alleys with considerable use by surrounding businesses with access to the businesses and multiple vehicle parking spots. Both Alleys had deteriorated pavements and inadequate drainage.

